

Court No. - 32

Case :- WRIT - C No. - 6292 of 2016

Petitioner :- Rajveer Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Subhash Chandra Rai

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Rakesh Tiwari,J.

Hon'ble Shashi Kant,J.

1. Heard counsel for the petitioner and Sri Ajay Krishna appearing for respondent no. 4. Perused the record.
2. The present petition has been filed challenging the recovery citation dated 23.1.2016 in regard to electricity dues. Submission of the counsel for petitioner is that recovery is against a dead person - Megh Singh, who is grandfather of the petitioner, but police is harassing the petitioner.
3. Since no recovery has been issued against the petitioner, therefore, he has no cause of action in the matter. Besides it, the petitioner also has an alternative and efficacious remedy under clause 7.10 of the Electricity Supply Code-2005 before the appropriate forum raising all grounds and pleas as taken in this petition and in view thereof, hence we are not inclined to interfere with the matter in exercise of extra ordinary powers under Art. 226 of the Constitution of India.
4. With the above observations, the petition is accordingly dismissed.

Order Date :- 16.2.2016

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